

26IWUD00458 26IWUD00458

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-06-23

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The Plaintiff's motion for judgment on the pleadings is granted. "A motion for judgment on the pleadings, like a general demurrer, confines the court's consideration to the face of the pleadings under attack and to matters outside the pleading that are judicially noticeable. No extrinsic evidence can be considered." (Jayasinghe v. Lee (1993) 13 Cal.App.4th Supp. 33, 36; see also Heffesse v. Guevara (2025) 108 Cal.App.5th Supp. 74, 82.) As the Plaintiff requests, the court takes judicial notice of (1) the Plaintiff's Motion to Deem Requests for Admissions Admitted, which includes the Plaintiff's Requests for Admissions, filed on May 4, 2026 and (2) the June 3, 2026 Notice of Ruling granting Plaintiff's Motion to Deem Requests for Admissions Admitted. (Evid. Code, § 452, subd. (d)(1); see Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174 [court may take judicial notice of a party's admissions in earlier pleadings in the same lawsuit].)

As a result of the court's order deeming admitted the Plaintiff's requests for admissions, the Defendant has admitted the facts alleged in the Plaintiff's complaint supporting this unlawful detainer action. The Defendant also admitted there is no factual basis to support the affirmative defenses stated in her answer. Thus, the Plaintiff is entitled to judgment as a matter of law.